

**FICTIONAL TRAINING ARTIFACT — NOT FILED — NOT LEGAL
ADVICE**

UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA
Richmond Division — Civil Action No. SYN-EDVA-25-CV-0412

ORDER ON BLUE CEDAR'S MOTION TO EXCLUDE

Entered December 1, 2025.

Blue Cedar moves to exclude the Tessa Wynn declaration filed with Benton's summary-judgment opposition. The motion is granted only as to the materially new March 7 conversation subject. Wynn remains available as a disclosed comparator witness on her duties, source metrics, calibration score, continuity exception, and assignments retained or received after the RIF.

The relevant dates are undisputed. Initial disclosures were exchanged August 15. Wynn was deposed October 2, Voss was deposed October 7, discovery closed October 10, and supplementation was due October 17 absent leave. Wynn reviewed her transcript October 13, contacted Benton October 14, and Benton delivered the substance to counsel October 15. Counsel interviewed Wynn October 20. The declaration was signed November 3, first served November 4, and filed November 10 after Blue Cedar's October 27 summary-judgment motion. No subject-level supplement or request for leave was made by the October 17 deadline.

The declaration introduced a materially different subject

Rule 26(a)(1)(A)(i) requires disclosure of the subjects on which an identified person may supply supporting information. Rule 26(e)(1) requires timely correction when a disclosure becomes materially incomplete and the new information has not otherwise been made known during discovery or in writing. Both parties disclosed Wynn as a comparator witness concerning work, metrics, scoring, continuity, and assignments. Her deposition covered the Northline contingency as a coverage matter. It did not reveal an alleged reference to Benton's HR and EEOC activity.

The newly asserted words change the evidentiary use of the conversation. Benton offers them not merely to show Wynn could receive Northline, but to suggest that Voss connected protected activity to a possible position removal while participating in calibration. Wynn's identity and the handoff setting were known, but that materially different motive subject was not. Counsel learned the subject before the cutoff and could have served a concise correction describing it without waiting for a completed declaration. The November 4 service was therefore untimely, and no prior discovery response otherwise made the subject known.

Surprise, cure, disruption, and importance

Under *Benjamin v. Sparks*, 986 F.3d 332 (4th Cir. 2021), the Court considers surprise, ability to cure, disruption, importance, and the explanation for nondisclosure. Surprise is substantial. The initial disclosures affirmatively confined Wynn's subjects, and the October depositions did not reveal the motive-related wording. Blue Cedar completed both Wynn's and Voss's examinations without reason to investigate that account.

A meaningful cure would extend beyond the offered two-hour examination. Blue Cedar reasonably would test Wynn's recollection, reopen Voss after her contrary testimony, examine whether the subject was known to other participants, and seek focused communications. Doing so after the October 10 close would interrupt briefing already underway and the January 26 trial schedule. Those considerations favor exclusion. The declaration's importance favors Benton. If credited, the alleged words would bear directly on Voss's state of mind when she participated in score changes. The Court gives that importance real weight, but it does not make the delayed subject harmless in light of the discovery that a fair response would require.

Explanation, scope of relief, and disposition

Benton bears the burden to establish substantial justification or harmlessness. Counsel explains that accuracy required a signed declaration and that the disclosed Northline continuity subject seemed broad enough. Neither point justified silence after October 15. A timely supplement could have described the newly recalled subject while reserving exact wording, and counsel could have requested leave for a completed account. Waiting until after Blue Cedar filed its dispositive motion shifted the cost of that choice to the opposing party and the entered schedule.

The declaration's importance does not outweigh surprise, the work required to cure, disruption, and the inadequate explanation. Rule 37(c)(1) therefore bars Benton from using the declaration or the newly asserted March 7 motive-related statement on the pending motion, at a hearing, or at trial. The ruling does not exclude Wynn's timely disclosed testimony about comparator duties, metrics, scoring, continuity, or assignments. It imposes no fee or broader witness sanction. The Court does not hold that the declaration is a sham, does not find that Wynn flatly contradicted her deposition, and does not decide the credibility conflict between Wynn and Voss. The exclusion rests solely on Rules 26 and 37. The motion is granted to that limited extent.